

HESSLER v KAUTZ VINEYARDS

21CV45613

DEFENDANT'S MOTION TO DISMISS

This is a personal injury case arising out of Plaintiff Darlene Hessler's ("Plaintiff") alleged fall at the Kautz Vineyards dba Ironstone Winery ("Ironstone") on October 6, 2019. Now before the Court is Ironstone's motion to dismiss pursuant to Code of Civil Procedure sections 583.410 and 583.420.

Code of Civil Procedure section 583.410(a) provides:

The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.

Discretionary dismissal may be ordered if an action is not brought to trial within two years after the action is commenced against the defendant if the Judicial Council by rule so prescribes. (Cal. Rules of Court, Rule 3.1340(a); Code Civ. Proc., § 583.420(a)(2).) Additionally, the court has the inherent authority to dismiss an action. (Code Civ. Proc., § 583.150.) In ruling on a motion to dismiss under Code of Civil Procedure sections 583.410-583.430, the Court must consider all relevant matters, including: (1) The court's file in the case and the declarations and supporting data submitted by the parties and, where applicable, the availability of the moving party and other essential parties for service of process; (2) The diligence in seeking to effect service of process; (3) The extent to which the parties engaged in any settlement negotiations or discussions; (4) The diligence of the parties in pursuing discovery or other pretrial proceedings, including any extraordinary relief sought by either party; (5) The nature and complexity of the case; (6) The law applicable to the case, including the pendency of other litigation under a common set of facts or determinative of the legal or factual issues in the case; (7) The nature of any extensions of time or other delay attributable to either party; (8) The condition of the court's calendar and the availability of an earlier trial date if the matter was ready for trial; (9) Whether the interests of justice are best served by dismissal or trial of the case; (10) Any other fact or circumstance relevant to a fair determination of the issue. (Cal. Rules of Court, Rule 3.1342(e).)

Plaintiff filed this case on September 21, 2021. The Defendant answered on April 8, 2022 and subsequently served discovery on May 11, 2022 and reserved on July 7, 2022. (Declaration of Daniel C. Taylor, Esq. ("Taylor Decl.") ¶ 4.) On July 22, 2022, Plaintiff's counsel informed Defendant's counsel that Plaintiff had passed away. (*Id.* ¶ 5.)

In January 2023, Plaintiff's counsel confirmed that Plaintiff's family intended to move forward with the case and that steps would be taken in probate court to appoint Plaintiff's granddaughter, Stephanie Hessler, as the personal representative. (*Id.* ¶ 6.) Defendant propounded additional discovery on March 7, 2023, including Requests for Admissions, Set One, and Judicial Council Form Interrogatories, Set Two. (*Id.* ¶ 7.) As of January 27, 2025, no responses have been received, and Plaintiff's counsel has not requested any extensions. (*Id.* ¶

On October 10, 2023, Plaintiff's counsel submitted a verification executed by Stephanie Hessler to the initial discovery requests. (*Id.* ¶ 9.) However, it was not until three days later that the Sacramento Superior Court, Probate Division, issued orders appointing Stephanie Hessler as the administrator of the Estate of Darlene Hessler. (*Id.* ¶ 8.) In December 2023, Defendant's counsel requested that Ms. Hessler resubmit the verification because the first one, done prior to her appointment as administrator, was ineffective. (*Id.* ¶ 10.) Despite representations by Plaintiff's counsel that the new verification would be forthcoming, it never came. (*Ibid.*) Plaintiff's counsel was non-responsive to Defendant's counsel's attempts in January 2024 to discuss the deficient responses. (*Id.* ¶ 11.) As of the filing of this motion, Plaintiff has not served any discovery nor scheduled any depositions. (*Id.* ¶ 12.)

This action has not been brought to trial within two years. The Plaintiff has taken no meaningful steps to actively pursue litigation in this case. Further, Plaintiff has not filed an opposition. Given all these factors, the Court finds that dismissal is warranted. (See (Cal. Rules of Court 3.1342(b) ["The failure of the opposing party to serve and file a written opposition may be construed by the court as an admission that the motion is meritorious, and the court may grant the motion without a hearing on the merits."].))

The Motion to Dismiss is **GRANTED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required. The Case Management OSC scheduled for June 4, 2025, at 1:30 p.m., in Dept. 4 is VACATED.

DAVID ZAMORA, TRUSTEE v CLAPP

22CV46467

PLAINTIFF/CROSS-DEFENDANT'S DEMURRER TO CROSS-COMPLAINT

This is partnership dispute involving the management of real property and two residential units thereon. Now before the Court is a demurrer filed by Plaintiff/Cross-Defendant Dave Zamora (son and acting trustee of his father Gus Zamora's trust) to the Cross-Complaint filed by Defendant/Cross-Complainant Clyde Clapp.

I. Factual and Procedural Background

The instant case is related to two other cases: 16CV41649 and 19PR8129.

In November of 2007, Gus Zamora ("Gus"¹, now deceased), his son and acting trustee of Gus' trust Dave Zamora ("Dave") and Gus' close friend Clyde Clapp ("Clapp") pooled together their respective resources to acquire APN 073-044-006, commonly known as 1521 Country View Drive in Valley Springs ("Property"). Although all three were to share equally in the \$138,000 down payment, Dave or Gus (the pleading is unclear) advanced Clyde's share. The balance of the purchase price was covered by loan from Indymac.

Over the years, the parties contributed different efforts to the Property, which eventually came to house a second rental dwelling. Shortly after the second dwelling was rented, disagreement arose between the parties regarding contributions and sweat equity, prompting Gus to file a lawsuit against Clapp (Case No: 16CV41649). Given his advanced years (91) and diminishing health, Gus was represented throughout most of the case by his son Dave, in the latter's capacity as guardian ad litem. Gus died while that action was pending. The dispute was subject of a bench trial in April of 2021. Following witness testimony and the admission of nearly 200 exhibits, this court found that partnership did exist, that it was not impliedly terminated by Gus or Dave, and that Clapp breached his fiduciary duties to the other partners by treating the Property as his own (recording title and keeping rent checks). Judgment was entered for Gus and Dave. This Court ordered that the Property was to be sold, with Clapp taking 1/3 of the net proceeds and Gus/Dave to receive the balance. (See Statement of Decision dated 06/21/21, and Judgment entered 09/07/21.) Clapp filed an appeal.

¹ Given the common surname between Gus and Dave Zamora, the Court refers to the parties by their first names. No disrespect is intended.